

The Philippines' Commitment to the Fight Against Impunity for Atrocity Crimes

Edson Chase H. Yap
College of Law, West Visayas State University

Former United Nations Secretary-General Kofi Annan was once quoted saying: "This cause ... is the cause of all humanity."¹ These words embody the aspirations of all of humanity in making sure that justice prevails against the worst kinds of atrocities committed against the human race. For this reason, the International Criminal Court (ICC) was established through an international treaty known as the Rome Statute. The ICC investigates and, where warranted, tries individuals charged with the gravest crimes of concern to the international community: genocide, war crimes, crimes against humanity and the crime of aggression.²

The Philippines had a rather convoluted history with the Rome Statute and the ICC. This was discussed in detail in *Pangilinan vs. Cayetano*, as follows:

Since 1996, under Fidel V. Ramos's presidency, the Philippines has participated in the court's establishment, taking an active role in the deliberations as a member of the Drafting Committee.

On December 28, 2000, the Philippines, through then President Joseph Ejercito Estrada, signed the Rome Statute of the ICC.

President Estrada's act of signing the Rome Statute signified the Philippines' intent to be bound by the provisions of the treaty, subject to the domestic requirements for its validity and enforceability. Particularly, Article VII, Section 21 of the 1987 Constitution requires the concurrence by at least two-thirds of all members of the Senate for a treaty to be valid, binding, effective, and enforceable.

In the meantime, on July 1, 2002, the ICC's Rome Statute entered into force.

On December 11, 2009, with Senate concurrence to the Rome Statute still pending, then President Gloria Macapagal-Arroyo signed into law Republic Act (RA) No. 9851, otherwise known as the Philippine Act on Crimes Against International Humanitarian Law, Genocide, and Other Crimes Against Humanity. Republic Act No. 9851 replicated many of the Rome Statute's provisions.

¹ "About the Court." International Criminal Court. Accessed November 16, 2022.
<https://www.icc-cpi.int/about/the-court>.

² *Ibid.*

Senate concurrence to the Rome Statute was obtained following President Benigno Aquino III's election. On August 23, 2011, the Senate, with a vote of 17-1, passed Resolution No. 546 enabling the Philippines' consummate accession to the Rome Statute.

On August 30, 2011, the Philippines deposited the instrument of ratification of the Rome Statute. On November 1, 2011, the Rome Statute entered into force in the Philippines. The country was the 16th state party to belong to the Group of Asia-Pacific State Parties in the ICC.

On June 30, 2016, President Aquino's term ended and President Rodrigo Roa Duterte took his oath as chief executive.

On April 24, 2017, Atty. Jude Sabio filed a complaint before the International Criminal Court pertaining to alleged summary killings when President Duterte was the mayor of Davao City.

On June 6, 2017, Senator Antonio Trillanes IV and Representative Gary Alejano filed a "supplemental communication" before the International Criminal Court with regard to President Duterte's drug war.

On February 8, 2018, the Office of International Criminal Court Trial Prosecutor Fatou Bensouda commenced the preliminary examination of the atrocities allegedly committed in the Philippines pursuant to the Duterte administration's "war on drugs."

On March 15, 2018, the Philippines announced that it was withdrawing from the International Criminal Court. President Duterte claimed that the country never became a state party to the Rome Statute since the treaty was not published in the Official Gazette.

On March 16, 2018, the Philippines formally submitted its Notice of Withdrawal from the ICC to the United Nations. Enrique Manalo, the Permanent Representative of the Republic of the Philippines to the United Nations in New York, deposited the Note Verbale to Maria Luiza Ribeiro Viotti, Chef de Cabinet of the United Nations' Secretary-General Antonio Guterres.

The full text of this notification reads:

"The Permanent Mission of the Republic of the Philippines to the United Nations presents its compliments to the Secretary-General of the United Nations and has the honor to inform the Secretary-General of the decision of the Government of the Republic of the Philippines to withdraw from the Rome Statute of the International Criminal Court in accordance with the relevant provisions of the Statute.

The Philippines assures the community of nations that the Philippine Government continues to be guided by the rule of law embodied in its Constitution, which also enshrines the country's long-standing tradition of upholding human rights.

The Government affirms its commitment to fight against impunity for atrocity crimes, notwithstanding its withdrawal from the Rome Statute, especially since the Philippines has a national legislation punishing atrocity crimes. The Government remains resolute in effecting its principal responsibility to ensure the long-term safety of the nation in order to promote inclusive national development and secure a decent and dignified life for all.

The decision to withdraw is the Philippines' principled stand against those who politicize and weaponize human rights, even as its independent and well-functioning organs and agencies continue to exercise jurisdiction over complaints, issues, problems and concerns arising from its efforts to protect its people.

The Permanent Mission of the Republic of the Philippines to the United Nations avails itself of this opportunity to renew to the Secretary-General of the United Nations the assurances of its highest consideration.

On March 17, 2018, the Secretary-General of the United Nations received the notification from the Philippine government.”³

From the above, it is unquestionable that the Philippines became a state party to the Rome Statute on November 1, 2011, since the requirements of the Constitution, particularly Article VII, Section 21, as well as those under Articles 125 and 126 of the Rome Statute, as stated below, were complied with.

Article 125

Signature, ratification, acceptance, approval or accession.

x x x x

2. This Statute is subject to ratification, acceptance or approval by signatory States. Instruments of ratification, acceptance or approval shall be deposited with the Secretary-General of the United Nations.
3. This Statute shall be open to accession by all States. Instruments of accession shall be deposited with the Secretary-General of the United Nations.

Article 126

Entry into force

x x x x

³ Senator Francis “Kiko” N. Pangilinan, *et. al.* vs. Alan Peter Cayetano, *et. al.*, G.R. No. 238875 (March 16, 2021).

2. For each State ratifying, accepting, approving or acceding to this Statute after the deposit of the 60th instrument of ratification, acceptance, approval or accession, the Statute shall enter into force on the first day of the month after the 60th day following the deposit by such State of its instrument of ratification, acceptance, approval or accession.⁴

The argument that the Rome Statute was never binding on the Philippines because it was not published in the Official Gazette deserves scant consideration., as it is well-established in international law that following the doctrine of *pacta sunt servanda*, a state cannot renege on its obligations under an international treaty on the ground of procedural technicalities, particularly when its duly appointed (or elected) representatives have signified their intention to be bound by the treaty's provisions. This is the doctrine of *pacta sunt servanda*.

Further, assuming that the non-publication of the treaty in the Official Gazette operates to exempt the Philippines from its binding force, there would not have been any need to withdraw from the treaty. Certainly, the submission of the official Notice of Withdrawal from the ICC estops the Philippines from taking a contrary stance on the Rome Statute's entry into force in the country.

It cannot also be denied that the Philippines has withdrawn from the Rome Statute effective March 16, 2019 when it formally submitted its Notice of Withdrawal to the United Nations., This was made pursuant in accordance with Article 127 of the Rome Statute, which states: "A State Party may, by written notification addressed to the Secretary-General of the United Nations, withdraw from this Statute. The withdrawal shall take effect one year after the date of receipt of the notification, unless the notification specifies a later date."⁵

Nevertheless, the reasons behind such withdrawal may have been politically motivated. This is evident from the words used in the *Note Verbale* deposited to the United Nations: "The decision to withdraw is the Philippines' principled stand against those who politicize and weaponize human rights..."⁶ This obviously refers to the complaints filed by Atty. Jude Sabio, former Senator Antonio Trillanes IV and former Representative Gary Alejano against fFormer President Rodrigo Duterte for alleged atrocities committed as a result of the latter's infamous "war on drugs."

As it is, answers to several key legal issues are warranted to shed light on the status of the Philippines' commitment to the fight against impunity for atrocity crimes. First, does the ICC have jurisdiction over the alleged atrocities perpetrated by fFormer President Duterte despite the prior enactment of RA No. 9851? Second, does the withdrawal of the Philippines from the Rome Statute divest the ICC of its jurisdiction over the alleged crimes? Third, does the statement in the *Note Verbale* that "the Philippines has a national legislation punishing atrocity crimes" deserve legal credence?

⁴ Rome Statute of the International Criminal Court, 56.

⁵ *Ibid*, 56. Rome Statute of the International Criminal Court.

⁶ Pangilinan vs. Cayetano, *supra* note 3.

Lastly, is there probable cause that “crimes against humanity” was committed by the former president?

Jurisdiction of the ICC

In *Bayan Muna vs. Alberto Romulo*, the Supreme Court underscored the primacy of the jurisdiction of the Philippines vis-a-vis that of the ICC.⁷ This is evident in Article 20 of the Rome Statute, which provides:

Article 207

Ne bis in idem

xx x x

3. No person who has been tried by another court for conduct also proscribed under article 6, 7, 8 or 8 *bis* shall be tried by the Court with respect to the same conduct unless the proceedings in the other court:
 - (a) Were for the purpose of shielding the person concerned from criminal responsibility for crimes within the jurisdiction of the Court; or
 - (b) Otherwise were not conducted independently or impartially in accordance with the norms of due process recognized by international law and were conducted in a manner which, in the circumstances, was inconsistent with an intent to bring the person concerned to justice.⁸

Supporters of former President Duterte argue that this provision effectively divests the ICC of jurisdiction over crimes allegedly committed by the former president because the Philippine courts are functioning as intended.

This argument does not hold water. While it is true that the enactment of R.A. No. 9851 effectively confers primary jurisdiction to Philippine courts as far as “other crimes against humanity” is concerned, Article 207 of the Rome Statute uses the word “tried.” Settled is the rule that criminal prosecutions or trials are commenced by the filing of a valid complaint or information. No such complaint or information was ever filed in the Philippines against the former president. Thus, it cannot be said that there has been a trial that would warrant the application of *ne bis in idem*.

⁷ *Bayan Muna vs. Alberto Romulo, et. al.*, G.R. No. 159618 (February 1, 2011).

⁸ Rome Statute of the International Criminal Court, 13.

Withdrawal by the Philippines

On the question of the jurisdiction of the ICC over alleged atrocity crimes perpetrated in the Philippines, the following articles of the Rome Statute are of particular importance:

Article 11

Jurisdiction *ratione temporis*

x x x x

2. If a State becomes a Party to this Statute after its entry into force, the Court may exercise its jurisdiction only with respect to crimes committed after the entry into force of this Statute for that State, unless that State has made a declaration under article 12, paragraph 3.

Article 12

Preconditions to the exercise of jurisdiction

x x x x

3. If the acceptance of a State which is not a Party to this Statute is required under paragraph 2, that State may, by declaration lodged with the Registrar, accept the exercise of jurisdiction by the Court with respect to the crime in question. The accepting State shall cooperate with the Court without any delay or exception in accordance with Part 9.

Article 127

Withdrawal

x x x x

2. **A State shall not be discharged, by reason of its withdrawal, from the obligations arising from this Statute while it was a Party to the Statute**, including any financial obligations which may have accrued. **Its withdrawal shall not affect any cooperation with the Court in connection with criminal investigations and proceedings in relation to which the withdrawing State had a duty to cooperate and which were commenced prior to the date on which the withdrawal became effective**, nor shall it prejudice in any way the continued consideration of any matter which was already under consideration by the Court prior to the date on which the withdrawal became effective.⁹ (Emphasis supplied)

⁹ *Ibid*, 56.

In this regard, several key dates must be taken into account in determining whether the ICC continues to exercise jurisdiction over alleged atrocities committed by former President Duterte:

1. The Rome Statute entered into force in the Philippines on November 1, 2011.¹⁰
2. The former president's latest tenure as mayor of Davao City lasted from June 30, 2013 to June 30, 2016. Previously, he also served as mayor of Davao City from June 30, 2001 to June 30, 2010.¹¹
3. Duterte became President of the Philippines from June 30, 2016 to June 30, 2022.¹²
4. ICC Prosecutor Bensouda commenced preliminary examination on the alleged atrocities committed by Duterte on February 8, 2018.¹³
5. The Philippines' withdrawal from the Rome Statute became effective on March 16, 2019.¹⁴

The Complaints filed in the ICC against Former President Duterte were for the alleged atrocities he committed as mayor of Davao City and during his "war on drugs" campaign. In addition, the preliminary examination for these atrocities was given due course by the ICC Prosecutor while the Rome Statute was still effective in the Philippines.

Therefore, applying the above provisions of the Rome Statute, notwithstanding the withdrawal of the Philippines, the ICC continues to retain jurisdiction over atrocities committed from November 1, 2011 when the statute entered into force in the Philippines while Duterte was Davao City Mayor up to March 16, 2019, the effective date of the withdrawal of the Philippines, when Duterte was already President of the country.

¹⁰ Pangilinan vs. Cayetano, *supra* note 3.

¹¹ "Rodrigo Duterte." Encyclopædia Britannica. Encyclopædia Britannica, inc. Accessed November 17, 2022. <https://www.britannica.com/topic/Rodrigo-Duterte>.

¹² *Ibid.*

¹³ Pangilinan vs. Cayetano, *supra* note 3.

¹⁴ *Ibid.*

R.A. No. 9851 vis-à-vis the Rome Statute

At this point, a comparison of the provisions of RA No. 9851 vis-à-vis the Rome Statute is in order. Section 9 of RA No. 9851 provides:

Section 9. Irrelevance of Official Capacity. - This Act shall apply equally to all persons without any distinction based on official capacity. In particular, official capacity as a head of state or government, a member of a government or parliament, an elected representative or a government official shall in no case exempt a person from criminal responsibility under this Act, nor shall it, in and of itself, constitute a ground for reduction of sentence. However:

- (a) Immunities or special procedural rules that may be attached to the official capacity of a person under Philippine law other than the established constitutional immunity from suit of the Philippine President during his/her tenure, shall not bar the court from exercising jurisdiction over such a person; (Emphasis supplied)

x x x x

On the other hand, Article 27 of the Rome Statute states:

Article 27

Irrelevance of official capacity

1. This Statute shall apply equally to all persons without any distinction based on official capacity. In particular, **official capacity as a Head of State or Government, a member of a Government or parliament, an elected representative or a government official shall in no case exempt a person from criminal responsibility under this Statute, nor shall it, in and of itself, constitute a ground for reduction of sentence**
2. **Immunities or special procedural rules which may attach to the official capacity of a person, whether under national or international law, shall not bar the Court from exercising its jurisdiction over such a person.**¹⁵ (Emphasis supplied)

The above provisions clearly show a marked difference between RA No. 9871 and the Rome Statute in terms of the criminal liability of the head of state. RA No. 9871 specifically exempts the President of the Philippines from any criminal liability arising from the commission of “atrocious crimes,” whereas such immunity is not recognized under the Rome Statute.

¹⁵ Rome Statute of the International Criminal Court, 15.

Accordingly, during the incumbency of Former President Duterte, assuming *arguendo* that even if a valid cComplaint or information has been filed against him for “other crimes of humanity” under RA No. 9871, Philippine courts would have been devoid of any jurisdiction to try him for the alleged crimes. Thus, while it is true that with the enactment of RA No. 9871, the Philippines has a national legislation punishing atrocity crimes, as regards the President of the Philippines, such legislation is rendered ineffective against the President of the Philippines by the express provision of Section 9 of the said law.

Probable Cause

Probable cause is defined as the presence of facts and circumstances that which would engender a well-founded belief that a crime has been committed and the accused is probably guilty thereof. It does not imply proof beyond reasonable doubt. As such, in order to determine probable cause, there is a need to examine closely the elements of the crime allegedly committed. The Rome Statute defines “crimes against humanity” in Article 7, as follows:

Article 7

Crimes against humanity

1. For the purpose of this Statute, "crime against humanity" means any of the following acts when committed as part of a widespread or systematic attack directed against any civilian population, with knowledge of the attack:

 (a) Murder;

 x x x x
2. For the purpose of paragraph 1:

 (a) "Attack directed against any civilian population" means a course of conduct involving the multiple commission of acts referred to in paragraph 1 against any civilian population, pursuant to or in furtherance of a State or organizational policy to commit such attack;

 x x x x
3. For the purpose of this Statute, it is understood that the term "gender" refers to the two sexes, male and female, within the context of society. The term "gender" does not indicate any meaning different from the above.

In addition, the Rome Statute defines the criminal responsibility of military commanders and other superior officers in Article 28, to wit:

Article 28

Responsibility of commanders and other superiors

In addition to other grounds of criminal responsibility under this Statute for crimes within the jurisdiction of the Court:

- (a) A military commander or person effectively acting as a military commander shall be criminally responsible for crimes within the jurisdiction of the Court committed by forces under his or her effective command and control, or effective authority and control as the case may be, as a result of his or her failure to exercise control properly over such forces, where:
 - i. That military commander or person either knew or, owing to the circumstances at the time, should have known that the forces were committing or about to commit such crimes; and
 - ii. That military commander or person failed to take all necessary and reasonable measures within his or her power to prevent or repress their commission or to submit the matter to the competent authorities for investigation and prosecution.
- (b) With respect to superior and subordinate relationships not described in paragraph (a), a superior shall be criminally responsible for crimes within the jurisdiction of the Court committed by subordinates under his or her effective authority and control, as a result of his or her failure to exercise control properly over such subordinates, where:
 - i. The superior either knew, or consciously disregarded information which clearly indicated, that the subordinates were committing or about to commit such crimes;
 - ii. The crimes concerned activities that were within the effective responsibility and control of the superior; and
 - iii. The superior failed to take all necessary and reasonable measures within his or her power to prevent or repress their commission or to submit the matter to the competent authorities for investigation and prosecution.¹⁶

¹⁶ Rome Statute of the International Criminal Court, 15.

According to the Real Numbers data released by the Philippine Drug Enforcement Agency (PDEA) as of January 31, 2022, a total of 226,662 anti-drug operations were conducted as part of the “war on drugs” campaign of President Duterte, resulting in 6,229 civilian casualties.¹⁷ However, other sources claim that the death toll totaled approximately 12,000. In the first year alone, 54 children were killed.¹⁸

Moreover, a report from Amnesty International disclosed that a police officer with the rank of Senior Police Officer 1 disclosed that, who has served in the force for a decade and has conducted operations as part of an anti-illegal drugs unit in Metro Manila, described how the police are paid per “encounter.” The officer was allegedly quoted as having said that– the term used to falsely present extrajudicial executions as legitimate operations: “We always get paid by the encounter...The amount ranges from 8,000 pesos to 15,000 pesos... That amount is per head. So, if the operation is against four people, that’s 32,000 pesos... We’re paid in cash, secretly, by headquarters...There’s no incentive for arresting. We’re not paid anything.”¹⁹

Of particular interest as well is the killing of 17-year old Kian Loyd Delos Santos in an alleged anti-illegal drugs operation in Caloocan City on August 16, 2017. Police officers claimed that Kian fired first, so they had to eliminate him, as their lives were placed in imminent danger. However, this was refuted by the accounts of witnesses, as well as the CCTV footage of the incident.²⁰ As a result, the three police officers involved were found guilty of murder and were sentenced to *reclusion perpetua* without the benefit of parole.²¹

These circumstances clearly constitute probable cause that a widespread and systematic attack was conducted in the Philippines during President Duterte’s “war on drugs” campaign, which resulted in the death of thousands of people. While there seems to be a lack of concrete evidence that the supposed killings were directed by the former president himself, he may still be liable as a military commander or superior under Article 28 of the Rome Statute for having failed exercise effective control over law enforcement personnel under his command to prevent the unjustified and senseless killings. In fact, in several of his speeches, Duterte urged the police to adopt a

¹⁷ Gita-Carlos, Ruth Abbey. “Give Drug War Report to Human Rights Groups, Duterte Tells PDEA.” Philippine News Agency. Philippine News Agency, March 30, 2022.
<https://web.archive.org/web/20220331232855/https://www.pna.gov.ph/articles/1170963>.

¹⁸ “The Guardian View on the Philippines: A Murderous ‘War on Drugs’ | Editorial.” The Guardian. Guardian News and Media, September 28, 2018.
<https://www.theguardian.com/commentisfree/2018/sep/28/the-guardian-view-on-the-philippines-a-murderous-war-on-drugs>.

¹⁹ “Philippines: The Police’s Murderous War on the Poor,” August 8, 2022.
<https://www.amnesty.org/en/latest/press-release/2017/01/philippines-the-police-murderous-war-on-the-poor/>.

²⁰ Cahiles, Gerg. “17-Year-Old Student Gunned down by Cops in Anti-Drug Operations.” cnn. Accessed November 24, 2022.
<https://www.cnnphilippines.com/news/2017/08/18/Kian-Loyd-Delos-Santos-war-on-drugs-Caloocan-police-operations.html>.

²¹ Cayabyab, Marc Jayson. “3 Cops Guilty of Kian Delos Santos Murder.” Philstar.com. Philstar.com, November 29, 2018.
<https://www.philstar.com/headlines/2018/11/30/1872988/3-cops-guilty-kian-delos-santos-murder>.

shoot-to-kill policy against those involved in illegal drugs, and even urged citizens to kill suspected criminals.²²

While this article has demonstrated the existence of probable cause, the question as to whether there is proof beyond reasonable doubt that the alleged “crimes against humanity” was committed by former President Duterte is another story. Undoubtedly, the appreciation of such evidence requires a full-blown trial, which may be conducted by the ICC after having acquired jurisdiction over the case. In sum, it can be said that the fight against impunity for atrocity crimes in the Philippines is far from over. ■

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²² “Go Ahead and Kill Drug Addicts’: Philippine President Rodrigo Duterte Issues Fresh Call for Vigilante Violence.” *South China Morning Post*, July 1, 2016.
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